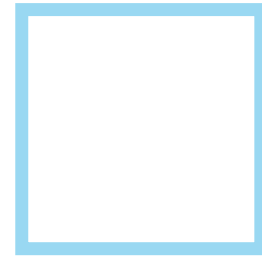




LONG RESIDENCE ILR



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Indefinite Leave to Remain on the Basis of 10 Years Long Residence: Eligibility, Requirements and How to Apply

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The 10-Years Long Residence route allows individuals who have lived in the United Kingdom lawfully and continuously for at least 10 years to apply for Indefinite Leave to Remain (ILR).

Long Residence ILR applicants may rely on time spent in most immigration categories to accrue the qualifying period, provided that their residence in the UK has been both lawful and unbroken throughout. A combination of different visa types is permitted, as long as the relevant requirements are met for the entire 10-year period.

Family members, such as partners and children, cannot be included in a long residence ILR application. They must qualify and apply separately, either by meeting the 10-year residence requirement in their own right or under a different immigration route appropriate to their circumstances.

1. Requirements for ILR on the Basis of 10 Years Long Residence

In order to qualify for Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence, you will need to demonstrate to UK Visas and Immigration that:

- You are in the UK on the date of application.
- You have completed a qualifying period of 10 years' continuous and lawful residence in the UK. During this period:
 - You must have held valid permission to stay, excluding time spent with permission as a Visitor, [Short-term Student \(English Language\)](#), or [Seasonal Worker](#); or
 - You must have been exempt from immigration control; or
 - You must have resided in the UK as an EEA national or the family member of an EEA national exercising free movement rights prior to 31 December 2020, and either:
 - held this status until 30 June 2021, or
 - applied under [Appendix EU](#) before that date, and remained in the UK pending a final decision.
- If your current permission was granted on or after 11 April 2024, you must:
 - have held permission on your current route for at least 12 months before the date of application, or
 - have been exempt from immigration control during the 12-month period immediately before applying.
- You have maintained continuous residence in the UK throughout the 10-year period, without any breaks as defined under the Immigration Rules.
- You meet the English language requirement at CEFR Level B1 in speaking and listening, unless an exemption applies.
- You have passed the Life in the UK Test, unless exempt.
- You are not in the UK in breach of immigration laws, including not being on immigration bail at the time of application.
- Your application does not fall for refusal under the general grounds for refusal, such as criminality, deception, or public policy concerns.

The exact requirements that apply may vary depending on your individual circumstances and immigration history. We strongly recommend seeking expert legal advice to assess your eligibility for Long Residence ILR and ensure a properly prepared application.



To discuss your 10 Year Long Residence ILR application with one of our immigration barristers, contact our Long Residence ILR lawyers on 0203 617 9173 or complete our enquiry form below.

2. Qualifying Period Requirement for 10-Year Long Residence ILR

To qualify for Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence, you must satisfy the Home Office that you have completed a qualifying period of 10 years' lawful residence in the UK.

Throughout the 10-year qualifying period, you must have been either:

- Lawfully present in the UK with valid immigration permission, excluding time spent under permission as a Visitor, Short-term Student (English Language), or Seasonal Worker; or
- Exempt from immigration control (for example, as a diplomat or member of the armed forces); or
- Resident in the UK as an EEA national or the family member of an EEA national, exercising rights of free movement before 31 December 2020, and continuing residence until:
 - 30 June 2021, or
 - the final determination of an application made under Appendix EU before that date.

If you have overstayed your immigration permission, spent time on immigration bail, or been in the UK without lawful status at any point during the 10-year period, that time will not count towards your qualifying period for ILR under the Long Residence route. Breaks in lawful residence may prevent you from meeting the requirements for settlement on the basis of long residence.

3. Switching Immigration Categories During the 10-Year Long Residence Period

One of the key advantages of the 10-Year Long Residence ILR route is that it allows individuals to combine time spent in multiple immigration categories to build the qualifying period of lawful and continuous residence in the UK. Unlike other settlement routes – such as the **Skilled Worker** or **Spouse** visa routes –

applicants are not required to have spent the qualifying years under a single visa category.

Time spent lawfully in the UK under a wide range of immigration routes may count towards the 10-year qualifying period. Eligible categories include time spent as a **Student** or Tier 4 Migrant, **Skilled Worker** or Tier 2 Migrant, **Graduate**, **Global Talent** visa holder, or as a family member under **Appendix FM**. Each period must have been both lawful and continuous, and the applicant must not have breached immigration conditions or spent time without valid leave.

Certain categories, however, do not count towards the 10-year long residence period. These include time spent in the UK as a Visitor, Short-term Student (English Language), or Seasonal Worker. These types of leave are specifically excluded from counting under the long residence rules.

Applicants may also rely on time spent in the UK with **settled status** or **pre-settled status** under the EU Settlement Scheme, or while exempt from immigration control, such as diplomatic staff or members of the armed forces.

If you have switched between immigration categories over the years, it is important to ensure that the entire 10-year period is covered by qualifying leave. Gaps between visas, periods spent in non-qualifying categories, or unlawful residence may break your continuous lawful residence and reset the qualifying clock. A careful review of your immigration history is essential before applying.

For personalised guidance on whether your time in the UK qualifies, and how switching visa categories may affect your application, we recommend seeking advice from a specialist immigration lawyer.

4. Impact of Time in the UK as a Child or Dependant on Long Residence ILR

Time spent in the UK as a child or as the dependent of another visa holder can count towards the 10-year lawful residence requirement for Indefinite Leave to Remain (ILR) under the Long Residence route, provided that the residence was lawful and continuous throughout the qualifying period.

For example, if you entered the UK as the child of a PBS migrant, or under a family visa route, and later obtained immigration permission in your own right – such as a Student visa, Skilled Worker visa, or another category – your earlier time in the UK as a dependant may still count towards the 10-year period.

There is no requirement that all time be spent independently or under a particular type of visa. What matters is that you held valid immigration permission at all times and did not break the continuity of your residence through overstaying, unauthorised absences, or unlawful status.

Individuals who have grown up in the UK as dependent children or partners may become eligible for settlement under the Long Residence rules once they reach the 10-year threshold, even if much of that time was spent under dependent status.

If your immigration history includes long periods of residence as a dependant, or if you have switched between dependant and main applicant status, it is advisable to seek expert legal advice to ensure your 10-year residence period is properly calculated and supported with appropriate evidence.

5. Impact of Gaps in Lawful Residence and Home Office Discretion

To qualify for Indefinite Leave to Remain (ILR) on the basis of 10 years' continuous and lawful residence, applicants must show that they have not broken their lawful residence at any point during the qualifying period.

However, short gaps in lawful residence can occur – for example, where a visa extension application was submitted after leave expired, or where an application was refused but later resolved by a successful appeal or fresh application.

The Home Office may exercise discretion in limited circumstances where the break in lawful residence is covered by Paragraph 39E of the Immigration Rules. Under this provision, a late application may be treated as if it were made in time, provided that:

- The application was submitted within 14 days of the expiry of previous permission or receipt of decision on an application or appeal refusal where permission has been extended under Section 3C of the Immigration Act 1971; and
- The applicant can demonstrate a good reason for the delay, supported by credible evidence explaining why the application could not have been submitted earlier.

Where discretion under paragraph 39E applies, the relevant period may still be counted as lawful residence for the purposes of the Long Residence ILR application.

However, any period of residence in the UK without valid immigration status that is not covered by paragraph 39E will generally break the continuity of lawful residence, and reset the 10-year qualifying clock.

If your immigration history includes a potential gap in lawful residence, you should seek specialist immigration advice to assess whether discretion may be available in your case or whether an alternative immigration route may be more appropriate.

6. Current Immigration Permission Requirement for 10-Year Long Residence ILR

If you are applying for Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence, and your current immigration permission was granted on or after 11 April 2024, you must have held that permission for at least 12 months at the time of your Long Residence ILR application. This normally means 12 months on the same type of visa, rather than 12 months since your last grant of leave.

The only exception to this rule is if you were exempt from immigration control at any time during the 12 months immediately preceding your ILR application – for example, as a diplomat or member of HM Forces.

This requirement means that individuals on immigration routes granted for less than 12 months, such as **Visitors**, **Short-term Students (English Language)**, or **Seasonal Workers**, cannot qualify for ILR on the Long Residence route – even if they have accrued 10 years of lawful residence overall. If you are on a longer-term route (e.g. **Skilled Worker**, **Student**, **Spouse**) but have not yet held your current permission for 12 months, you will need to delay your Long Residence ILR application until the 12-month period has been completed – even if your 10-year qualifying residence period has already been met.

7. Continuous Residence Requirement for 10-Year Long Residence ILR

To qualify for Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence, you must meet the continuous residence requirement. This means that you must have been physically present in the UK throughout the entire 10-year qualifying period without any excessive absences or other breaks in lawful residence.

Absences from the UK and Impact on Continuous Residence



Absences from the UK may break the 10-year continuous residence period. To assess this, you should prepare a comprehensive travel schedule detailing all periods of time spent outside the UK during your qualifying period – usually ending on the date of application.

For residence accrued before 11 April 2024:

- You must not have been outside the UK for more than 184 days (6 months) at any one time, unless a permitted reason applies.
- You must not have spent more than 548 days (18 months) in total outside the UK across the 10-year period (again, unless a permitted reason applies).

For residence accrued from 11 April 2024 onwards:

- You must not be outside the UK for more than 180 days in any rolling 12-month period.
- The 548-day total limit no longer applies to this part of your qualifying period.

For single absences spanning 11 April 2024:

- Any absence that starts before and ends after 11 April 2024 must be no longer than 184 days.
- Time spent outside the UK before 11 April 2024 counts toward the 548-day total for that earlier period.
- Time from 11 April 2024 onwards is assessed under the new rolling 180-day rule only.

Note: Time spent in the Channel Islands or Isle of Man does not count as time spent in the UK for the purposes of the Long Residence ILR continuous residence test.

8. Permitted Reasons for Excess Absences in a 10 Year ILR Application

In limited circumstances, absences exceeding the permitted thresholds may be disregarded if you can show a compelling or compassionate reason. The Home Office may exercise discretion where excess absences were due to:

- A natural disaster, military conflict, or global pandemic (e.g. COVID-19);
- The life-threatening illness or death of a close family member;
- A life-threatening illness of the applicant; or
- Other serious and unforeseeable events beyond your control.

To rely on a permitted reason, applicants must provide documentary evidence to support their explanation. Legal advice is strongly recommended in such cases.

9. International Students and the Continuous Residence Requirement

Under a previous version of the 10-year Long Residence ILR rules, many international students were unable to qualify for Long Residence ILR because frequent travel during academic holidays caused them to exceed the 548-day total absence limit. However, following the April 2024 changes, the rolling 180-day rule now applies to time after 11 April 2024, and the 548-day total cap no longer applies.

This offers new opportunities for current and former international students who may now meet the continuous residence requirement – even if they travelled abroad regularly during term breaks – provided they do not exceed 180 days' absence in any rolling 12-month period post-April 2024.

10. Other Factors That Break Continuous Residence

Your 10-year continuous residence will be broken for the purpose of a 10-Year Long Residence ILR application if:

- You have been convicted of a criminal offence and sentenced to immediate imprisonment (suspended sentences do not break residence);
- You were detained under immigration powers or subject to a deportation order or removal directions;
- You were in the UK without valid immigration permission at any time during the qualifying period (unless discretion under paragraph 39E applies).

11. Applications for 10-Year Long Residence ILR Based on Historic Residence

Under earlier versions of the Immigration Rules, it was possible to qualify for Indefinite Leave to Remain (ILR) based on a historic period of 10 years' continuous lawful residence in the UK – even if the 10-year qualifying period had ended before the date of application.

However, under the current Long Residence provisions, as set out in [Appendix Long Residence](#), the continuous residence period must now be current and unbroken. Specifically, your 10-year qualifying period must be calculated by counting back from one of the following:

- The date of application;
- Any date up to 28 days after the date of application; or
- The date of decision – whichever is most beneficial to the applicant.

As a result of this change, it is no longer possible to rely on a historic qualifying period that ended well before the date of application. Applicants must now demonstrate continuous and lawful residence leading directly up to the date of application or decision.

Meeting the continuous residence requirement under the Long Residence ILR route can be legally complex – especially where absences, previous overstays, or immigration gaps are involved. You are advised to seek advice from a specialist immigration lawyer to assess your eligibility and maximise your prospects of success.

12. Unable to Satisfy the 10-Year Long Residence ILR Requirements?

If you have spent a long period living in the UK but cannot demonstrate 10 years of continuous and lawful residence, you may still be eligible to remain in the UK on human rights grounds, particularly under the private life route set out in [Appendix Private Life](#) of the Immigration Rules.

We strongly recommend seeking advice from an immigration lawyer to assess your options and prepare a robust application.

Private Life Applications as an Alternative to Long Residence ILR

If you do not meet the strict requirements for Indefinite Leave to Remain on the 10-Year Long Residence route – especially the need to show unbroken lawful residence – you may be able to apply for leave to remain on the basis of your private life in the UK.

The private life route may be suitable if:

- You have lived in the UK continuously for 20 years, regardless of whether your residence has been lawful; or
- You have lived in the UK for less than 20 years, but there are very significant obstacles to your integration in the country you would be expected to return to.

This pathway is particularly relevant to individuals who have:



- Had periods without lawful immigration status;
- Experienced gaps in their immigration history; or
- Been unable to regularise their status despite long residence in the UK.

Does the Private Life Route Lead to Settlement?

While the private life visa does not offer immediate eligibility for ILR, it can lead to settlement after 10 years of continuous leave on this route. In some cases, applicants may qualify for accelerated settlement depending on their age or time spent in the UK from a young age.

Legal Advice for Private Life and Long Residence Applications

Determining whether the private life route is appropriate – and preparing a strong, well-evidenced application – requires careful legal analysis. Our immigration barristers can assess your eligibility under both the Long Residence ILR route and Appendix Private Life, and help you identify the most suitable route to securing lawful status or settlement in the UK.

13. English Language Requirement and Life in the UK Test for Long Residence ILR

To qualify for Indefinite Leave to Remain (ILR) on the 10-Year Long Residence route, you must satisfy both the English language requirement and the Life in the UK Test requirement, unless you are exempt.

English Language Requirement – CEFR Level B1

You must demonstrate English language ability to at least Common European Framework of Reference (CEFR) Level B1 in speaking and listening. This requirement can be met by:

- Passing an [approved English language test](#) at CEFR Level B1 or above from a Home Office-approved provider;
- Holding a UK degree or higher qualification taught in English;
- Holding a GCSE, A Level, Scottish National Qualification at level 4 or 5, or Scottish Higher or Advanced Higher in English, which was awarded by an approved UK educational institution and obtained while you were under the age of 18 and in full-time education in the UK.

Life in the UK Test Requirement

You must also have passed the **Life in the UK Test**, which assesses your knowledge of British history, customs, and values. The test must be taken at an approved UK test centre.

Exemptions

You may be exempt from either or both requirements if you:

- Are aged 65 or over;
- Have a long-term physical or mental condition that prevents you from meeting the requirement (supported by medical evidence);
- Previously met these requirements as part of a successful settlement application (in limited cases).

If you are unsure about how to meet the English language or Life in the UK test requirements, our immigration barristers can provide tailored advice and assist with preparing your application for Long Residence ILR.

14. Evidence Required for a 10-Year Long Residence ILR Application

When applying for Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence in the UK, it is essential to provide clear and credible evidence of both lawful and continuous residence throughout the entire qualifying period.

The Home Office will expect your application to be supported by a coherent immigration history, backed up by relevant documentary evidence for each period of leave and physical presence in the UK.

Key Documents to Prove Lawful and Continuous Residence

Applicants should compile a comprehensive record of their immigration status, including all periods of leave to enter or leave to remain in the UK. Recommended documents include:

- Passports covering the 10-year period (including any expired passports);
- UK visas, entry clearance vignettes, and Home Office decision letters confirming grants of leave;
- Biometric Residence Permits (BRPs);
- UKVI status share codes or digital immigration status confirmations (for post-digital status holders);
- University or school attendance records;

- Employment records or payslips showing UK-based work during permitted stay.

Alternative Evidence if Key Documents Are Missing

If you are unable to provide a full set of formal immigration documents, you may still be able to demonstrate continuous residence using alternative supporting evidence, such as:

- Bank statements showing regular UK-based activity;
- Tenancy agreements or council tax bills showing residence in the UK;
- Letters from GPs or NHS records confirming registration and medical appointments;
- Correspondence from educational institutions verifying enrolment and attendance.

The Home Office may accept a range of documentary evidence, but it must clearly support your claim of lawful and continuous residence. The stronger and more consistent your evidence, the better your chances of a successful application.

Seek Legal Advice Where Gaps Exist

If your immigration history includes gaps, missing documents, or periods that are difficult to evidence, we recommend speaking to a specialist immigration lawyer. Legal advice can help you identify potential weaknesses in your application, source alternative or corroborating evidence and present your case in the most compelling way to UK Visas and Immigration.

15. 10-Year Long Residence ILR Application Fee

The Home Office fee for applying for Indefinite Leave to Remain (ILR) on the 10-Year Long Residence route is currently £2,885 (as of 2025). This fee covers standard processing only.

16. Processing Time for 10-Year Long Residence ILR Applications

The standard Home Office processing time for a 10-Year Long Residence ILR application is up to 6 months from the date of biometrics enrolment.

At present:



Applicants who opt for the Super Priority Service can expect a decision within 24 hours (next working day) after attending their biometric appointment – subject to availability and complexity of the case.

There is no 5-working day Priority Service available for Long Residence ILR applications.

17. Duration of Indefinite Leave to Remain on the Long Residence Route

Once you are granted Indefinite Leave to Remain (ILR) under the 10-Year Long Residence route, your immigration status will no longer be subject to time limits or visa renewal requirements. ILR provides the right to live, work, and study in the UK without restriction, and you are no longer required to maintain a specific immigration category or sponsorship.

Although ILR is granted on an indefinite basis, it can be lost in certain circumstances. You may lose your ILR status if:

- You are absent from the UK for more than 2 continuous years, in which case your ILR will lapse automatically; or
- You commit a serious criminal offence and the Home Office decides to deprive or revoke your ILR, particularly if the offence meets the threshold for [deportation](#) under the Immigration Rules.

If your ILR has lapsed due to long absence abroad, you may be eligible to apply for a [Returning Resident visa](#), depending on your ties to the UK and circumstances of your absence.

To maintain your settled status and eventually qualify for British citizenship, it is important to avoid lengthy absences and ensure continued residence in the UK where possible.

18. British Citizenship After 10-Year Long Residence ILR

If you've been granted Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence, you may be eligible to apply for [British citizenship by naturalisation](#).

If you are not married to a British citizen, you must usually wait 12 months after being granted ILR before applying. If you are married to a British citizen, you can apply as soon as ILR is granted.

To naturalise, you must normally show:

- 5 years' lawful residence in the UK;
- No more than 450 days of absence during that period;
- No more than 90 days of absence in the last 12 months;
- Proof of English language ability and Life in the UK Test (if not already provided);
- Good character, with no serious criminal convictions or immigration breaches.

Our immigration barristers can advise on your eligibility and help prepare a strong application for British citizenship after long residence.

19. Common Reasons for Refusal of 10-Year Long Residence ILR Applications

Despite meeting the minimum residence threshold, many applicants are refused Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence due to issues relating to legal status, travel history, documentation, or suitability under the Immigration Rules. Below are some of the most common reasons for refusal.

One of the principal grounds for refusal is a break in lawful residence. To qualify under the long residence route, applicants must show an unbroken 10-year period of valid immigration status. If there has been a gap – such as an application submitted after leave expired, time spent without valid permission, or a period of immigration bail – this may reset the qualifying clock. Although the Home Office may exercise discretion under paragraph 39E in certain cases involving short gaps with good reason, failure to meet the conditions for discretion will usually result in refusal.

Excessive absences from the UK can also break continuous residence. For residence accrued before 11 April 2024, applicants must not have spent more than 184 days outside the UK on a single occasion or more than 548 days in total across the 10-year period. For residence accrued on or after 11 April 2024, absences must not exceed 180 days in any rolling 12-month period. Where absences exceed these limits, applicants must demonstrate that the time abroad was due to a permitted reason, such as serious illness, conflict, or pandemic-related disruption. Otherwise, continuous residence will be deemed broken.

Another common issue is incomplete or insufficient documentation. Applicants must provide clear evidence of lawful residence and physical presence in the UK for the entire qualifying period. This typically includes passports, visas, biometric residence permits, and Home Office correspondence. Where documents are missing or unavailable, alternative evidence – such as bank statements, tenancy

agreements, or letters from employers or educational institutions – may be submitted. However, vague, inconsistent, or unsupported evidence often leads to refusal.

Applications are also frequently refused on the basis of failure to meet the English language requirement or the Life in the UK Test. All applicants must demonstrate English speaking and listening ability to at least CEFR Level B1, and provide a valid pass certificate for the Life in the UK Test, unless exempt. Relying on UK-based qualifications must be done carefully, ensuring they meet the eligibility criteria and were awarded by recognised institutions.

Finally, the application may be refused under the general grounds for refusal, such as if the applicant has a serious criminal conviction, used deception in a previous application, or has outstanding NHS debt or litigation costs owed to the Home Office. For applications submitted on or after 11 April 2024, failure to meet the 12-month current permission requirement – where the applicant has not held their current immigration route for at least 12 months and is not exempt from immigration control – can also lead to refusal, even where the 10-year period is otherwise satisfied.

Given the range of potential pitfalls, careful review of your immigration history and supporting documents is essential before applying. Where there is any uncertainty or potential risk, seeking expert legal advice can make the difference between success and refusal.

20. Right of Appeal Following a Refusal of a Long Residence ILR Application

An application for Indefinite Leave to Remain (ILR) on the basis of 10 years' long residence is treated by the Home Office as a human rights claim. This means that if your application is refused, you will ordinarily have a right of appeal to the **First-tier Tribunal (Immigration and Asylum Chamber)** under Section 82 of the Nationality, Immigration and Asylum Act 2002.

The appeal right arises because the refusal of a long residence ILR application is considered to engage **Article 8 of the European Convention on Human Rights**, which protects the right to respect for private and family life. As a result, you may challenge the Home Office's decision on both factual and legal grounds, including errors in the assessment of your residence history, interpretation of the Immigration Rules, or consideration of any exceptional or compassionate circumstances.

If your Long Residence ILR application is refused, the refusal letter should confirm your right of appeal and set out the deadline for lodging an appeal – usually 14 calendar days from the date you receive the decision (if you are in the UK).

Given the complexity of appeal proceedings and the high standard of evidence required, it is strongly recommended to seek advice from an experienced immigration appeal lawyer to assess your case, prepare grounds of appeal, and represent you before the Tribunal.

21. Benefits of Indefinite Leave to Remain via Long Residence

Obtaining Indefinite Leave to Remain (ILR) through the 10-Year Long Residence route offers significant advantages for individuals who have made the UK their long-term home.

Once granted ILR, you are no longer subject to immigration time limits or visa renewal requirements. You will have the right to live, work, study, and conduct business in the UK without restriction, and you will not need to apply for further leave to remain.

ILR may also give you access to public funds, such as benefits and housing support, provided you meet any other applicable eligibility criteria. This can be especially important for individuals transitioning from visa categories that previously carried a 'No Recourse to Public Funds' condition.

A major benefit of ILR is that it provides a route to British citizenship. After holding ILR for at least 12 months (unless you are married to a British citizen), and subject to meeting the good character and residency requirements, you may be eligible to apply for naturalisation as a British citizen.

Additionally, ILR can make it easier to sponsor family members to join you in the UK. As a settled person, you may be able to bring your partner, children, or other dependents under the UK's family visa routes, helping to unite your family in the UK.

For those who have spent a decade or more in the UK, ILR through long residence offers long-term security, stability, and the freedom to remain in the UK permanently.

22. How the 10-Year Long Residence ILR Route Compares to Other Settlement Options



The 10-Year Long Residence route to Indefinite Leave to Remain (ILR) is one of several pathways to permanent settlement in the UK. Understanding how it compares to other ILR routes – such as the [Skilled Worker visa](#), [Innovator Founder route](#), or [Appendix FM family visas](#) – can help applicants choose the most suitable route based on their immigration history and long-term plans.

Unlike most ILR routes, which require five years of continuous residence on a single immigration category, the Long Residence route allows individuals to combine time spent under multiple visa categories over a 10-year period. This makes it particularly attractive to those who have switched between immigration routes but maintained lawful and continuous residence throughout.

However, there are key differences. Five-year ILR routes typically offer a faster path to settlement but are often more rigid. They may include sponsorship requirements, salary thresholds, dependent restrictions, and limitations on switching visa categories. The Long Residence route, by contrast, offers greater flexibility in accumulating qualifying time but requires applicants to meet strict residence and documentation standards, with no breaks in lawful immigration status.

For individuals who are eligible for both five-year and 10-year ILR routes, the best option will depend on factors such as:

- The length and continuity of their current UK residence;
- The immigration categories previously held;
- The ability to meet requirements such as the 12-month current permission rule (for Long Residence applications submitted after 11 April 2024);
- Future plans, including family sponsorship or citizenship.

Seeking advice from an experienced immigration lawyer can help assess the relative merits of each route and guide you toward the most efficient and secure pathway to settlement.

23. 10-Year Long Residence ILR Applicants FAQs

[Who is eligible to apply for Indefinite Leave to Remain based on 10 years' long residence?](#)



[What types of visas count towards the 10-year long residence period?](#)



Can time spent in the UK as a child or dependent be included in the 10-year period?



How does the Home Office define continuous residence for long residence ILR?



What happens if I had a gap in lawful residence during the 10 years?



Do I need to have held my current visa for 12 months before applying?



What documents do I need to support a Long Residence ILR application?



How much does a 10-Year Long Residence ILR application cost?



How long does it take to get a decision on a Long Residence ILR application?



Can I apply for British citizenship after receiving Long Residence ILR?



24. How Our Immigration Barristers Can Help

The 10-Year Long Residence route to Indefinite Leave to Remain (ILR) offers individuals who have made the UK their long-term home a flexible pathway to settlement. However, demonstrating continuous and lawful residence across a decade – often involving multiple immigration categories, changes of status, or evidential gaps – can be legally complex and procedurally demanding. At Richmond Chambers, our specialist immigration barristers offer strategic guidance and expert legal representation to help you present a compelling Long Residence ILR application with confidence.

10-Year Long Residence ILR Applications

If you are considering applying for ILR on the basis of long residence, we can:



- Assess your eligibility, including a detailed review of your immigration history to ensure the full 10-year period is lawfully and continuously covered;
- Advise on gaps, absences, and discretionary issues, including whether any periods of overstaying, late applications, or excess absences may be mitigated under paragraph 39E or other Home Office guidance;
- Assist with gathering and organising supporting documents, such as passports, visa records, BRPs, academic or employment letters, and alternative evidence of presence where records are incomplete;
- Prepare a comprehensive and professionally drafted ILR application, meeting the evidential standards under Appendix Long Residence, and highlighting discretionary or exceptional circumstances where applicable;
- Respond to Home Office queries or requests for further information, ensuring that your case is accurately and persuasively presented throughout the decision-making process.

Our approach is meticulous and client-focused, designed to maximise your prospects of success while reducing the risk of delays or refusal.

Ongoing Legal Support After ILR Grant

Once you have been granted ILR, we can continue to support you with:

- Understanding your rights and responsibilities as a settled person, including how to maintain your ILR and avoid lapsing due to long absences or criminal issues;
- Advising on family applications, including how to sponsor dependants under the UK's family immigration routes and support their journey to settlement;
- Preparing for naturalisation as a British citizen, including guidance on the 12-month post-ILR residence requirement, good character assessments, and documentation for a successful application.

Appeals and Complex Cases

If your Long Residence ILR application has been refused, we can assist by:

- Reviewing the reasons for refusal and identifying grounds of appeal to the First-tier Tribunal;
- Preparing detailed appeal bundles and written submissions, including expert legal argumentation under Article 8 ECHR and immigration case law;
- Representing you at appeal hearings, where required, to advocate for your right to remain based on long residence and private life in the UK.

Whether you are preparing your initial Long Residence ILR application, responding to a complex refusal, or planning for British citizenship after settlement, our team of expert immigration barristers can guide you through every stage of the process with clarity, precision, and strategic insight.

25. Contact Richmond Chambers Immigration Barristers

At Richmond Chambers, we are committed to providing a professional, strategic, and responsive service tailored to the needs of individuals seeking to settle in the UK through the 10-Year Long Residence route. Our highly experienced immigration barristers offer clear and reliable legal advice, backed by a deep understanding of UK immigration law and Home Office policy.

To speak with one of our immigration barristers about your 10-Year Long Residence ILR application, please call us on +44 (0)20 3617 9173, email info@richmondchambers.com, or complete our online enquiry form below.

WE CAN ALSO ASSIST WITH

10-Year Long Residence ILR Eligibility Assessments



Gaps in Residence and Paragraph 39E Discretion



Travel History and Absence Analysis



Evidence Gathering and Immigration History Documentation



Complex Immigration Histories and Route Switching



10-Year Long Residence ILR Refusals and Immigration Appeals



Private Life Applications as an Alternative to Long Residence ILR



Post-ILR Citizenship Planning



Family Sponsorship and Settlement for Dependants





WHAT CAN WE **HELP YOU WITH?**

To discuss your Long Residence ILR application with one of our immigration barristers, contact our personal immigration team on 0203 617 9173 or complete our enquiry form below.

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